

56	Felix vs. Melchor Case No. 30-2021-01222406	Plaintiff moves for a separate judgment against Defendant Pedro Ramirez Melchor It appears from the file that Plaintiff initially attempted to file a default judgment packet and a Request for Dismissal. However, the Clerk's office rejected the documents on 1/17/23 (ROA 51), with the following comments: "All Defendants not named on the Judgment, must be dismissed or disposed of. If seeking a separate Judgment, an Application for Separate Judgment pursuant to CCP 579 is required under CA Rule of Court 3.1800(a)(7)." Plaintiff then filed the Motion for Separate Judgment. It is unclear whether Plaintiff is attempting to dismiss Defendant Jarely Melchor, who responded to the Complaint or whether it is appropriate to continue the instant motion until after the trial in this matter. The case currently has a default prove-up hearing set for 11/16/2023 at 1:30 p.m. The motion is continued until 11/16/2023 at 1:30 p.m. <i>Moving party to give notice.</i>
57	National Funding, Inc. vs. XPT Logistics, Inc. Case No. 30-2023-01329408	<i>Off-calendar as moot.</i>
58	Bray vs. Fox Rent A Car, Inc. Case No. 30-2023-01301322	Defendant Fox Rent a Car Inc. ("Defendant") filed a Motion to Compel Arbitration. The Motion is DENIED pursuant to 9 U.S.C. § 402(a). 9 U.S.C. § 402 states: "(a) In general.--Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute. (b) Determination of applicability.--An issue as to whether this chapter applies with respect to a dispute shall be determined under Federal law. The applicability of this chapter to an agreement to arbitrate and the validity and enforceability of

		an agreement to which this chapter applies shall be determined by a court, rather than an arbitrator, irrespective of whether the party resisting arbitration challenges the arbitration agreement specifically or in conjunction with other terms of the contract containing such agreement, and irrespective of whether the agreement purports to delegate such determinations to an arbitrator.” (9 U.S.C.A. § 402.) The court agrees with Plaintiff. The plain language of 9 U.S.C. § 402 expressly states that “no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C.A. § 402, subd. (a).) Each of Plaintiff’s six causes of action relate to the sexual harassment Plaintiff claims she has and continues to experience during her employment with Defendant. Defendant points to other trial court cases wherein some causes of action were sent to arbitration while the sexual harassment claims were stayed. This case is different than those cited by Defendant in that Plaintiff’s claims are based solely on sexual harassment. Plaintiff does not allege any wrongful conduct based on any other protected characteristics or activities under FEHA, such as disability or race. Plaintiff’s allegations are limited to those relating to the sexual harassment dispute and fall squarely within the protection of 9 U.S.C. § 402. Accordingly, the Motion to Compel Arbitration is DENIED. Plaintiff’s request for sanctions is DENIED. Defendant to file an answer or responsive pleading within 10 days. The case management conference is continued to 10/26/2023 at 1:30 p.m. <i>Plaintiff to give notice.</i>
59	Ruiz vs. Nissan North America, Inc. Case No. 30-2022-01266638	Plaintiff Jesus Ruiz (“Plaintiff”) petitions the court pursuant to Code of Civil Procedure section 1281.2 and 1281.6 for an order to compel Defendant Nissan North America, Inc.